

25STCV35298 25STCV35298

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: PLAINTIFF MARTI'AN HUGHES' MOTION TO QUASH SUBPOENAS SEEKING PLAINTIFF'S EMPLOYMENT RECORDS [CRS # 4154]

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Case Number: 25STCV35298 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MARTI'AN HUGHES,

Plaintiff,

vs.

JEAN-JACQUES ELBAZ, D.D.S.,
M.S., A PROFESSIONAL DENTAL CORPORATION dba THE BEVERLY HILLS CENTER FOR
ADVANCED DENTAL IMPLANTS & PERIODONTOLOGY, a

California professional
corporation; JEANJACQUES ELBAZ, an individual; DOES 1 through 100, inclusive,

Defendants.

AND OTHER PLEADINGS IN ACTION.

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CASE NO: 25STCV35298

[TENTATIVE] ORDER RE: PLAINTIFF

MARTI'AN HUGHES' MOTION TO QUASH SUBPOENAS SEEKING PLAINTIFF'S EMPLOYMENT
RECORDS [CRS # 4154]

Dept. 731

August 4, 2026

8:30 A.M.

[TENTATIVE] ORDER RE: PLAINTIFF

MARTI'AN HUGHES' NOTICE OF MOTION AND MOTION TO QUASH SUBPOENAS SEEKING
PLAINTIFF'S THERAPY AND MEDICAL RECORDS [CRS # 8958]

Dept. 731

August 4, 2026

8:30 A.M.

Moving Party: Plaintiff, Marti'An Hughes

Opposing Party: Defendants, Jean-Jacques Elbaz, D.D.S., M.S., A
Professional Dental Corporation dba The Beverly Hills Center for Advanced
Dental Implants & Periodontology

Notice: OK

Background Facts

a. Motion

Before the Court

Now before the Court are Plaintiff's

opposed motions to quash seven subpoenas duces tecum seeking Plaintiff's
employment records [CRS # 4154] and therapy and medical records [CRS # 8958].)

b. Pleadings

As contextual background, the Court summarizes the pleadings.

Plaintiff Marti'an Hughes ("Plaintiff")

sues Defendants Jean-Jacques Elbaz, D.D.S., M.S. ("Elbaz"), The Beverly Hills Center for Advanced Dental Implants & Periodontology (the "Beverly Hills Center"), and Does 1-100 pursuant to a December 3, 2025, Complaint alleging claims for (1) Sexual Harassment, (2) Failure to Prevent Harassment, (3) Retaliation under FEHA, (4) Whistleblower Retaliation under Labor Code § 1102.5, (5) Wrongful Constructive Termination in Violation of Public Policy, (6) Intentional Infliction of Emotional Distress, (7) Failure to Pay Minimum Wages, (8) Unpaid Overtime, (9) Failure to Provide Accurate Wage Statements, and (10) Failure to Pay All Wages Due Upon Separation.

The claims arise from the following

allegations. Hughes, an employee of Defendants', was subjected to repeated sexual harassment by a long-standing patient and by Elbaz himself, including unwanted sexual comments, a physical assault, and receipt of a pornographic image, all of which she allegedly reported and Defendants failed to address. Instead, Defendants retaliated after Hughes's complaints and moreover retaliated against Hughes after she refused to retroactively alter patient records, isolating Hughes, reducing her duties, removing benefits, and worsening her working conditions. These conditions became intolerable, forcing Hughes's constructive resignation on June 2, 2025. Defendants otherwise are alleged to have engaged in wage-and-hour violations, including unpaid off-the-clock work, inaccurate wage statements, and failure to pay all wages owed at separation.

In turn, Defendant and Cross-Complainant

Jean-Jacques Elbaz, D.D.S., M.S., a Professional Dental Corporation dba The Beverly Hills Center for Advanced Dental Implants & Periodontology ("Cross-Complainant"), brings a January 29, 2026 Cross-Complaint against Plaintiff and Cross-Defendant Marti'an Hughes ("Hughes") and Roes 1–20 alleging a single cause of action for Violations of California Penal Code § 502.

The claims arise from allegations

that Elbaz and his dental practice allege that Hughes intentionally accessed

and manipulated Beverly Hills Center's computer systems without authorization shortly before resigning, deleting operational files and wiping browser data in a manner that concealed her activity. They further claim she entered the restricted server room on her last day, after which the network crashed due to a physically disconnected cable, abruptly halting all patient operations. The Practice states the crash required emergency IT remediation, forensic investigation, and substantial internal labor to restore functionality and identify missing or damaged files. It seeks damages for lost business, operational disruption, and continuing investigative and restoration costs.

Motions to Quash

Meet and Confer

The Court briefly notes that no meet and confer efforts need precede the filing of a motion to quash pursuant to Code of Civil Procedure section 1985.3, subdivision (g) (permitting motion by consumer pursuant to § 1987.1 to quash deposition subpoena for consumer records), 1985.6, subdivision (f)(1) (motion by employee pursuant to § 1987.1 to quash deposition subpoena for employment records), or 1987.1, subdivision (a) (motion to quash a subpoena for attendance and/or production at a deposition). (See Code Civ. Proc., § 1985, et seq.)

b. Preliminary Considerations

i. Separate Statement

The Court declines to deny the present motion for failure to attach a separate statement as required by California Rules of Court, rule 3.1345. First, the election is discretionary. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893 [a court's denial of a motion for failure to attach a separate statement is discretionary].) Second, Plaintiff's papers provide a sufficient outline of the party's position for the hearing to move forward, as shown by the fact that Defendants were able to draft a separate statement roughly summarizing Plaintiff's position on each motion to quash. (Cal. Rules of Court, rule 3.1345(b)(2) [court may permit concise outline may serve in lieu of separate statement].)

ii. Request

for Judicial Notice

The Court declines to take judicial notice of prior orders by Judge Kim in other actions vis-à-vis whether a separate statement is required in support of motions to quash subpoenas duces tecum. No such notice is required for disposition of the matters before the Court.

c. Legal
Standard

A motion to quash a deposition subpoena or notice is used to strike, modify, or impose conditions on a subpoena that is procedurally or substantively defective. (See Code Civ. Proc., §§ 1985.3, subd. (g), 1985.6, subd. (f)(1), 1987.1, subd. (a), 2025.410, subd. (c).)

A motion to quash may be made by

(1) any party to the action, (2) the subpoenaed witness, (3) a person whose consumer, governmental, or employment records are sought, (4) a person whose “personally identifying information” is subpoenaed in context of free-speech activities, or (5) the court on its own motion after notice and hearing. (See Code Civ. Proc., § 1987.1(b)(1)–(5), (a); see also *id.* at §§ 1985.3, subd. (g), 1985.6, subd. (f)(1).)

Grounds for such a motion include:

errors or irregularities in the deposition notice (Code Civ. Proc., § 2025.410, subds. (a), (c)); requests for information outside the scope of discovery or non-relevant material (*Catholic Mut. Relief Soc’y v. Superior Court* (2007) 42 Cal.4th 358, 365; *Cadiz Land Co. v. Rail Cycle, L.P.* (2000) 83 Cal.App.4th 74, 122-123; unreasonable or oppressive burdens (*McClatchy Newspapers v. Sup. Ct.* (1945) 26 Cal.2d 386, 391); invasion of privacy interests (*Fett v. Medical Bd.* (2016) 245 Cal.App.4th 211, 213); or violations of privilege (*Monarch Healthcare v. Superior Court* (2000) 78 Cal.App.4th 1282, 1290.)

Discussion

After review, the Court finds in favor of Plaintiff, in part, and in favor of Defendants, in part.

i. Duplicative

Discovery

The Court initially notes that it does not find any merit to Plaintiff's argument that Defendants fail to use less intrusive means to seek the information sought by the subject subpoenas. (4154 Motion, p. 12; 8958 Motion, p. 12.) Multiple forms of discovery may be sought as to the same subject absent a showing under Code of Civil Procedure section 2019.030, subdivisions (a)(1)-(2). (See also *Carter v. Superior Court* (1990) 218 Cal.App.3d 994, 997 [discovery as to the same subject permitted in different forms—§ 2031 production requests and deposition production requests—even if duplicative, absent § 2019.030 showing].)

ii. Alleged

Gamesmanship and Character Evidence Issues

The Court briefly notes that while providing helpful context, Plaintiff's argument that Defendants are seeking wide-sweeping information related to Plaintiff while failing to comply with their own discovery obligations is not a basis to grant or deny the present motion. (4154 Motion, pp. 12-13; 8958 Motion, p. 13.)

Separately, the Court notes

Plaintiff's concerns that production of disciplinary records simply goes toward character evidence, which the Court weighs in making its final determination. (4154 Motion, pp. 13-14.)

iii. Right

to Privacy, Overbreadth, and Subpoena Modification

The Court turns to Plaintiff's main two arguments in favor of relief—the right to privacy and overbreadth—as well as Plaintiff's request for subpoena modifications. (4154 Motion, pp. 12-13, 14-15; 8958 Motion, pp. 5-12, 13-14.)

Under the California Constitution,

a person has a right to privacy. (Cal. Cons., art. I, § 1; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 (*Williams*); *County of L.A. v. Los Angeles Cty. Empl. Relations Comm'n* (2013) 56 Cal.4th 905, 926; see, e.g., *In re Ins. Installment Fee Cases* (2012) 211 Cal.App.4th 1395,

1428 [A person has a right to prevent disclosure of information about personal finances, including information about bank accounts, assets, and debts]; Mathews v. Becerra (2019) 8 Cal.5th 756, 782 [A person has a right to prevent disclosure of the person's medical history and to prevent an intrusion into bodily autonomy, to wit, information of psychiatric treatment].)

Critically, however, the right to privacy is qualified, not absolute. (John B. Superior Court (2006) 38 Cal.4th 1177, 1199 (John B.)) A party can waive its right to privacy, such as by raising a claim or defense in a suit that puts the personal information at issue. (See, e.g., *ibid.* at p. 1199 [by putting his own medical condition at issue, defendant substantially lowered expectation of privacy]; see also Wegner, Fairbank, Epstein & Chernow, California Practice Guide: Civil Trials & Evidence (The Rutter Group) Ch. 8-E ¶ 8:2728 [a party who claims emotional distress from sexual harassment may waive her right to privacy as to her present mental or emotional condition].)

If the case involves an obvious invasion of a privacy interest that is fundamental to the holder's personal autonomy, a compelling interest or need must be present to overcome the privacy interest. (Williams, *supra*, 3 Cal.5th at p. 552.) To show a compelling need, the discovering party must demonstrate that the information sought is directly relevant and essential to the fair resolution of the legal proceeding. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1425; Britt v. Superior Court (1978) 20 Cal.3d 844, 859 [same].)

If the privacy interest is less central or in bona fide dispute, a general balancing test must be used. (Lewis v. Superior Court (2017) 3 Cal.5th 561, 572.) Under this test, the invasion of privacy interest does not violate the state constitutional right to privacy if the invasion is justified by a legitimate interest. (Lewis v. Superior Court, *supra*, 3 Cal.5th at p. 573; Hill v. NCAA, *supra*, 7 Cal.4th at p. 38.) The general balancing test applies to most privacy interests. (Lewis v. Superior Court, *supra*, 3 Cal.5th at p. 573; Hernandez v. Hillsides, Inc. (2009) 47 Cal.4th 272, 288.)

Here, Plaintiff's Complaint puts damages at issue (e.g., wrongful termination, lost wages, and mitigation) and moreover puts emotional distress at issue. (See, e.g., ¶¶ 94-105 [emotional distress at ¶ 101, within wrongful termination context].) Thus, records from

past and present employers, as well as medical records relating to Plaintiff's emotional distress over the years, are, to a point, relevant to a fair resolution of this action, which would satisfy even the compelling interest standard. For example, if confounding sources of emotional distress exist, or if evidence shows damages have been mitigated, those pieces of evidence are directly relevant to a resolution of Plaintiff's claims and to Defendants' defenses.

However, at the heart of the question is whether the subpoenas go too far irrespective of whether they can be pared down to comply with the Code.

The Court's review answers in the affirmative, both with respect to privacy and with respect to overbreadth. However, the Court also determines that the subpoenas can be properly modified by this Court to state requests properly tailored to lead to admissible evidence or matter that appears reasonably calculated to lead to admissible evidence. (Code Civ. Proc., § 1987.1, subd. (a) [court may modify subpoena upon motion]; see Code Civ. Proc., § 2017.010 [scope of discovery].)

The Court modifies the subpoenas and explains its reasoning as follows:

Employment
Records [CRS # 4154]

The employment records subpoenas served on Mother Industries LLC, One Dental Beverly Hills, and Dentistry for Midtown, LLC read identically and are modified as follows. (See 4154 Motion, Taylor Decl., ¶¶ 4-5, Exs. A-C at Attachment 3.)

The following modifications are applicable to all three subpoenas, which are, again, identically phrased. Similarly, Plaintiff's briefing is generalized, not addressing any one subpoena differently than another for purposes of analysis in this motion.

Briefly, the material struck out seeks overbroad information for which relevance has not been established for the Court. That material also raises bases for concern over serious invasions of privacy insofar such information is not essential to a fair resolution of

this action, and it is not clear what legitimate interest there is in the overbroad information requested.

1. DOCUMENTS

maintained by YOU RELATING TO YOUR EMPLOYMENT of HUGHES from June 2, 2020, to the present, limited to offers of employment and acceptance thereof, employee “onboarding” documents, employee benefit files, and employee time records.

2. All DOCUMENTS

sufficient to identify all EMPLOYMENT compensation, salary, bonus, commission, expense reimbursements, and any other remuneration paid to HUGHES by YOU from June 2, 2020, to the present.

3. All DOCUMENTS

RELATING TO any applications for EMPLOYMENT completed by HUGHES from June 2, 2020, to the present, including DOCUMENTS provided to YOU by HUGHES in connection with such applications (i.e. resumés, and work histories but not references or recommendation letters).

(See 4154 Motion, Taylor Decl., ¶¶ 4-5, Exs. A-C at Attachment 3, DOCUMENTS REQUESTED.)

Therapy and
Medical Records [CRS # 8958]

The therapy and medical records subpoenas served on Headway California Behavioral Services, P.C., Tiffany Truss-Cole, PhD, LMFT, and Not Just A Coach LLC aka Yvette Rose read identically and are modified as follows by strikethrough, with the remainder in bold, and additions in brackets. (See 8958 Motion, Taylor Decl., ¶¶ 4-5, Exs. A-C at Attachment 3.)

The following modifications are applicable to all three subpoenas, which are, again, identically phrased. Similarly, Plaintiff’s briefing is generalized, not addressing any one subpoena differently than another for purposes of analysis in this motion.

Briefly, the material struck out seeks overbroad information for which relevance has not been established for the Court. That material also raises bases for concern over serious invasions

of privacy insofar such information is not essential to a fair resolution of this action, and it is not clear what legitimate interest there is in the overbroad information requested.

1. All DOCUMENTS

including medical records, health care records, mental health care records, therapy records, psychological records, psychiatric records, consultation records, and treatment records RELATING TO the treatment or care of HUGHES for any mental, emotional, or psychological condition HUGHES has placed at issue in the LITIGATION (including but not limited to anxiety, depression, panic symptoms, sleep disturbance, emotional distress, trauma, stress, mental anguish, humiliation, or embarrassment) including but not limited to reports, summaries, outlines, notes, chronologies, intake documents, patient/client questionnaires, patient/client history notes and clinical notes, progress notes, tests and test results, patient/client evaluations, admit sheets, histories, charts, graphs, patient/client diaries, and files.

3. All appointment

records RELATING TO HUGHES' appointments, sessions, evaluations, examinations, therapy, or treatment with or by YOU from June 2, 2020, to the present.

4. All billing records

RELATING TO HUGHES from June 2, 2020, to the present, including but not limited to insurance records, billing statements, invoices, and payments.

5. All DOCUMENTS from

June 2, 2020, to the present RELATING TO HUGHES' mental, emotional, psychological, or psychiatric status or condition for any condition HUGHES has placed at issue in the LITIGATION (including but not limited to anxiety, depression, panic symptoms, sleep disturbance, emotional distress, trauma, stress, mental anguish, humiliation, or embarrassment), including but not limited to any evaluations of or opinions rendered.

6. All DOCUMENTS

RELATING TO any emotional distress, humiliation, embarrassment, discomfort, anxiety, depression, mental anguish, panic symptoms, sleep disruption, loss of appetite, stress, or trauma experienced by HUGHES from June 2, 2020, to the present.

8. All DOCUMENTS RELATING

TO the treatment, care and/or evaluation of HUGHES by any other medical or mental health professional for any mental, emotional, or psychological condition HUGHES has placed at issue in the LITIGATION (including but not limited to anxiety, depression, panic symptoms, sleep disturbance, emotional distress, trauma, stress, mental anguish, humiliation, or embarrassment), including but not limited to any doctor, therapist, psychologist, or psychiatrist, from June 2, 2020, to the present.

(See 8958 Motion, Taylor Decl., ¶¶ 4-5, Exs. A-C at Attachment 3, DOCUMENTS REQUESTED.)

Therapy and
Medical Records [CRS # 8958]

The therapy and medical records subpoena served on TherapyMatch, Inc. is modified as follows by strikethrough, with the remainder in bold, and additions in brackets. (See 8958 Motion, Taylor Decl., ¶¶ 4-5, Exs. A-C at Attachment 3.)

Briefly, the material struck out seeks overbroad information for which relevance has not been established for the Court. That material also raises bases for concern over serious invasions of privacy insofar such information is not essential to a fair resolution of this action, and it is not clear what legitimate interest there is in the overbroad information requested.

1. Records RELATING TO
HUGHES, limited to insurance records, billing statements, invoices, and payments from June 2, 2020, to the present.

(See 8958 Motion, Taylor Decl., ¶¶ 4-5, Ex. D at Attachment 3, DOCUMENTS REQUESTED.)

Request for Monetary
Sanctions in Opposition

Under Code of Civil Procedure section 1987.2, subdivision (a), the court retains discretion to award “reasonable expenses” — including attorney’s fees — incurred in making or opposing a motion. Such an award may be made if the court determines that the motion was

presented in bad faith, without substantial justification, or that a particular subpoena requirement was oppressive.

Defendants' opposition papers seek an award of monetary sanctions against Plaintiff for bringing this motion without justification among other things.

The Court DENIES those requests.

Simply, the Court's reasoning above shows both parties acted with substantial justification in making and opposing the motions to quash subpoenas duces tecum.

3. Conclusion

Plaintiff Marti'An Hughes's motion to quash Defendants' subpoena for employment records [CRS # 4154] is GRANTED, in part, according to the modifications ante.

Plaintiff Marti'An Hughes' motion to quash Defendants' subpoena for therapy and medical records [CRS # 8958] is GRANTED, in part, according to the modifications ante.

Production of documents SHALL be subject to the protective order entered by the parties in this action.

Defendants' requests for monetary sanctions are DENIED.

Plaintiff Marti'An Hughes is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court